

HOUSE No. 2445

The Commonwealth of Massachusetts

PRESENTED BY:

Natalie M. Higgins and Margaret R. Scarsdale

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act preserving essential services in our hospitals.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>Natalie M. Higgins</i>	<i>4th Worcester</i>	<i>1/15/2025</i>
<i>Margaret R. Scarsdale</i>	<i>1st Middlesex</i>	<i>1/15/2025</i>
<i>Sally P. Kerans</i>	<i>13th Essex</i>	<i>1/21/2025</i>
<i>James B. Eldridge</i>	<i>Middlesex and Worcester</i>	<i>2/10/2025</i>
<i>Jonathan D. Zlotnik</i>	<i>2nd Worcester</i>	<i>3/16/2025</i>
<i>Danillo A. Sena</i>	<i>37th Middlesex</i>	<i>4/11/2025</i>
<i>David Paul Linsky</i>	<i>5th Middlesex</i>	<i>10/1/2025</i>

HOUSE No. 2445

By Representatives Higgins of Leominster and Scarsdale of Pepperell, a petition (accompanied by bill, House, No. 2445) of Natalie M. Higgins, Margaret R. Scarsdale and others relative to essential services in hospitals. Public Health.

[SIMILAR MATTER FILED IN PREVIOUS SESSION
SEE HOUSE, NO. 4230 OF 2023-2024.]

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act preserving essential services in our hospitals.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 Chapter 111 of the General Laws, as appearing in the 2020 Official Edition, is hereby
2 amended by striking subsection (4) of section 51G and inserting in place thereof the following
3 section:-

4 (4) Any hospital shall inform the department 90 days prior to the proposed closing of the
5 hospital or the proposed discontinuance of any essential health service provided therein. The
6 department shall by regulation define "essential health service" for the purposes of this section.
7 The department shall, in the event that a hospital proposes to discontinue an essential health
8 service or services, conduct a public hearing on the closure of said essential services or of the
9 hospital. The department shall determine whether any such discontinued services are necessary

- 10 for preserving access and health status in the hospital's service area and if the department so
- 11 determines, the essential health service shall not be proposed for closure for three years.